

14. S-CV-0053177 Candland, Larry v. City of Lincoln

Motion for Summary Judgment

Defendant City of Lincoln moves for summary judgment of plaintiff's complaint contending entitlement to judgment because the doctrine of primary assumption of the risk bars plaintiff's recovery because potholes are an inherent risk of road cycling. Plaintiff opposes the motion.

The motion for summary judgment is granted. A party is entitled to bring a motion for summary judgment where there are no triable issues of fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) The defendant bears the initial burden of establishing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (*Id.* subd. (p)(2).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact. (*Ibid.*) In reviewing a motion for summary judgment, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court reviews the motion with these principles in mind.

Defendant presents evidence that plaintiff was an experienced cyclist with at least 20 years of experience who rode close to 100 miles per week. (SSUMF Nos. 1–4.) On July 27, 2023, plaintiff went on bike ride with his cycling group from Moo Moo's Burger in Rocklin to Simple Pleasures in Lincoln, a route plaintiff had ridden several times before. (SSUMF Nos. 12, 15, 17, 18.) Plaintiff was riding in the bicycle lane heading northbound on East Avenue in Lincoln but left the bicycle lane to turn westbound onto 5th Street. (SSUMF Nos. 19, 20.) Shortly after turning, plaintiff struck a pothole on 5th Street (9 to 18 inches wide and 4 to 8 inches deep) while traveling approximately 12 to 15 miles per hour. (SSUMF No. 22, 24.) Where the accident occurred, there was a bicycle lane on 5th Street, but plaintiff was in the traffic lane. (SSUMF Nos. 22, 23.) The City of Lincoln had never received a complaint or report about an accident associated with the pothole and was unaware of any prior accidents involving the pothole. (SSUMF No. 25.)

Defendant contends it is entitled to judgment as a matter of law due to the primary assumption of the risk doctrine. The doctrine of primary assumption of the risk negates a duty owed and bars liability for personal injuries when an activity includes inherent risks and an individual is injured as a result of one of those inherent risks. (*Cheong v. Antablin* (1997) 16 Cal.4th 1063, 1068; *Knight v. Jewett* (1992) 3 Cal.4th 296, 313, 314–15.) Determining whether the doctrine of primary assumption of the risk applies is a question of law. (*Moser v. Ratinoff* (2003) 105 Cal.App.4th 1211, 1217.) Primary assumption of the risk has been applied to recreational cycling. (*Moser v. Ratinoff* (2003) 105 Cal.App.4th 1211, 1215 [applying the doctrine to an organized, long-distance bicycle ride on public highways involving hundreds of participants]; *Williams v. County of Sonoma* (2020) 55 Cal.App.5th 125 [applying the doctrine to recreational cycling as part of training for an organized, noncompetitive, long-distance ride].) Primary assumption of

the risk acts as a complete defense provided the defendant did not engage in conduct that unreasonably increased the risks inherent in the sport or that would pose a hazard to foreseeable users outside of the primary assumption of the risk doctrine: “driving, riding a motorcycle, and bicycling as a means of transportation.” (*Williams, supra*, at pp. 130–32.)

Defendant’s evidence shows plaintiff was participating in the sport of recreational road cycling when the incident occurred. (SSUMF Nos. 12, 15, 17–20, 22, 24.) Defendant provides evidence by way of expert testimony that encountering potholes is an inherent and common occurrence of recreational road bicycling. (Bretting Decl., ¶ 13.)

Accordingly, the primary assumption of the risk doctrine applies and acts as a complete defense provided defendant did not engage in conduct that unreasonably increased the risks inherent in the sport or that would pose a hazard to other foreseeable users of the roadway. (*Williams, supra*, 55 Cal.App.5th at pp. 130 – 32.) There is no evidence defendant knew or should have known about this pothole prior to this incident (SSUMF No. 25), nor is there any evidence that defendant did anything to increase the risk inherent in recreational road cycling. Defendant submits expert testimony that this pothole would not pose a hazard to four-wheeled vehicles or motorcycles due to the shape of the pothole, the condition of its edges, and how traffic would interact with the pothole. (Neuman Decl., ¶ 9.) Defendant meets its initial burden of showing the primary assumption of the risk doctrine applies and acts as a complete defense against plaintiff’s claim.

The burden therefore shifts to plaintiff to show one or more triable issues of material fact. Towards that end, plaintiff submits a response to defendant’s separate statement, which presents some argument as to some of defendant’s facts but does not dispute any of defendant’s facts with evidence. Plaintiff also submits a separate statement of additional material facts (“SSAMF”) relying heavily on his declaration about the incident. While plaintiff did not submit any expert testimony, plaintiff presents evidence this pothole was not a minor crack or ordinary roadway irregularity and was larger and deeper than those he had commonly encountered while riding on public roads. (SSAMF Nos. 2, 3.) Plaintiff also presents evidence that immediately before the incident, he was riding in a portion of the roadway commonly used by cyclists traveling city streets, he was looking ahead and paying attention to the roadway, and he was not racing or participating in a competitive cycling event. (SSAMF Nos. 5, 8.) While these are additional facts pertaining to the incident, they fall short of disputing the issue of defendant’s duty and the application of the primary assumption of the risk doctrine. Plaintiff therefore falls short of his burden of showing one or more triable issues of material fact.

Based on the foregoing, defendant’s motion for summary judgment is granted.

15. S-CV-0054113 Christenson, Kyle D v. Auburn CDJR

Defendant’s motion for judgment on the pleadings is continued to **July 7, 2026, at 8:30 a.m. in Department 32.**